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TAJIKISTAN

Human Rights Developments

The peace process between the Tajik government and the United Tajik Opposition (UTO) made significant progress in 1999, paving the way for a September constitutional referendum, November presidential elections and parliamentary elections planned for 2000. But these political advances were not accompanied by greater human rights protections. The personal security of most citizens remained precarious due to overall lawlessness, high levels of criminal and political violence, hostage-taking, and unprofessionalism and corruption in law enforcement agencies and the judiciary. In anticipation of the November presidential elections, the government sought to restrict the activities of political parties, obstructed the registration of opposition candidates, and imposed additional curbs on the media.

On the political front, agreements between the parties on proposed amendments to the constitution, the declaration by the UTO of the disbandment of its armed units, the appointment of many UTO members to government posts as stipulated in the peace agreement, and the amnesty of approximately 5,000 UTO fighters, led to the legalization of UTO political parties, a constitutional referendum, and presidential and parliamentary elections slated for November 1999 and 2000 respectively. According to official information, the September 26 constitutional referendum was passed by an overwhelming 92 percent majority, but unofficially the ballot was marred by widespread proxy and open voting, falsification of voter registration lists, and numerous technical and procedural flaws. The adoption of the amendments led to a clear expansion of presidential powers, as the term of the president was extended from five to seven years, and a two-chamber parliament was established in which 75 percent of the upper chamber was to be elected by indirect vote through local parliaments (already led by presidential appointees), with the remaining 25 percent to be appointed by the president. The changes also permitted the functioning of religion-based political parties.

The law on presidential elections required signatures constituting 5 percent of the electorate for nomination of candidates, an excessively prohibitive figure; it also lacked adequate provisions for media access and coverage. Amidst widespread expectations throughout the population that the ballot would be seriously flawed and that no substantial changes would be forthcoming, the presidential elections nonetheless risked becoming a farcical procedure when in mid-October the three opposition candidates decided to boycott the poll. They claimed that local government officials had prevented them from collecting the signatures necessary for candidate registration. In a last-minute effort to preserve the veneer of the democratic procedure, the government granted the Islamic Renaissance Party candidate registration just two weeks before the elections.

The government also sought to halt or impede the activities of political parties, mainly by charging party members with violations of the Law on Political Parties. As of this writing, the Agrarian Party and the National Unity Party had been banned, the registration of the Party of Justice and Progress had been annulled, the activities of the Party of Economic and Political Revival of Tajikistan were suspended, and the National Movement Party of Tajikistan had been denied registration. The leadership of these parties reported threats and harassment of party members by the authorities. There were also reports that members of local government administrations were fired or demoted when they refused to join the People's Democratic Party of Tajikistan, the president's party.

Media freedoms also remained severely curbed. Independent journalists and media faced killings and unprosecuted violence as well as pre-publication censorship, arbitrary denial to print at government printing houses, monitoring and "counselling" of press services by the authorities, and burdensome licensing procedures. Given these difficulties, many practiced self-censorship. As elections approached, only one independent newspaper containing substantial political information was in print, no independent radio stations had been licensed to operate, and independent television and television production stations continued to experience government harassment. The rare few who published critical political views suffered threats or professional harassment from the authorities.

The judiciary continued to operate under heavy political influence. Prime examples included the trials of those arrested in connection with the fall 1998 armed rebellion in Leninabad, in which there was credible testimony of forced confessions and the intimidation of judges. Local and international observers at the trial of the murderers of four United Nations Mission to Tajikistan (UNMOT) personnel in July 1998 recounted torture of the accused and flagrant violations of basic legal principles.

Assaults, killings, extortion, and abductions throughout the country in 1999 were emblematic of an uncontrolled culture of violence; many of these crimes were conducted by members of the security forces or pro-government, UTO, or unaligned armed factions. High-profile assassinations in 1999 included that of Tolib Boboev, former deputy procurator general of Tajikistan and ally of outcast northern political leader Abdumalik Abdullojonov. Safarali Kenjaev, chairman of the Socialist Party of Tajikistan, was assassinated in Dushanbe, amid widespread speculation that he was to pose his candidacy in the presidential elections, and Ministry of Interior press center chief Jumakhona Khotami was also gunned down in Dushanbe.

In July, approximately 1,600 Uzbek nationals who had fled political and religious persecution in Uzbekistan were threatened with imminent expulsion back to that country. When armed members of that group subsequently fled into Kyrgyzstan, they took local and international hostages, and there were credible reports that Tajik nationals took up arms to join them in Kyrgyzstan. Although the government announced in August 1999 that all of the Uzbek nationals had left the country, there were credible reports at the time of writing that they remained in the Karategin Valley. The events yet again restricted access by international humanitarian aid groups to the impoverished Karategin Valley.

Defending Human Rights

The International Committee of the Red Cross (ICRC) continued to be denied access to prisoners in accordance with its standard procedures, and interventions by other international organizations in the prisons were limited, exacerbating already drastic conditions and the plight of high numbers of detainees languishing in pre-trial detention. The government and the international community increased their support of local nongovernmental women's organizations through the sponsorship of many seminars on women's issues, and a campaign against violence against women was conducted in a prominent Dushanbe-based Russian-language newspaper. Local monitoring remained at a minimum. However, the nongovernmental Fund in Memory and Defence of the Journalists of Tajikistan publicly protested restrictions on the media and secured the release of illegally-detained journalists. In late 1998, Tajikistan ratified the International Covenant on Civil and Political Rights and its first Optional Protocol, and the International Covenant on Economic and Social Rights.

The Role of the International Community

Off the record, representatives of the major international organizations and lending institutions in the country without exception acknowledged that electoral conditions were hopelessly flawed from the outset. However, as of this writing, no known conditions had been imposed on funding. The World Bank gave credits totaling U.S. \$95 million for structural reforms, disaster relief, educational reform, rehabilitation of private farms, and organizational support to the civil service, and the Asian Development Bank gave close to \$40 million in credits for improvements to the education, health, and social services sectors, and for reform in the energy and transport sectors.

United Nations

The United Nations Mission to Tajikistan (UNMOT) continued to focus its efforts on the implementation of the General Agreement, was instrumental in resolving crises between the two parties to the agreement, and geared its activities toward the holding of elections. But slow progress on the UNMOT murder trial forced the mission to restrict its activities for security reasons to Dushanbe until June. Soon afterward, it re-opened its field offices in Khorog, Kurgan-Tiube, and Khujand, closed since July 1998. The Garm office, which had also been closed at that time, remained inoperative as of this writing. Despite credible allegations of basic violations of due process from local and international experts who attended the murder trial, the U.N. made no comment.

The United Nations High Commissioner for Refugees (UNHCR) assisted in the repatriation of approximately 6,000 refugees from Turkmenistan, Kyrgyzstan, and Kazakhstan, but was unable due to security conditions to respond swiftly to the potential expulsion of approximately 1,600 Uzbek nationals from Tajik territory. United Nations Office of Project Services (UNOPS) launched a major job creation project, mainly involving the rehabilitation of public facilities and infrastructure, for hundreds of demobilized UTO fighters in the Karategin Valley.

Organization for Security and Cooperation in Europe (OSCE)

The OSCE mission in 1999 greatly increased its outreach to local NGOs, journalists, and politicians, sponsored effective conferences on the ombudsman's institution, the electoral law, and women's issues, and organized training for journalists. The mission established women's support groups in the south and organized country-wide seminars on women's issues. Several high-profile OSCE representatives visited Tajikistan, underscoring the OSCE's focus on elections preparation, but not one of the officials made use of the opportunity to denounce publicly the worsening human rights situation or deplore the lack of minimum conditions for free and fair elections. The mission maintained internationally-staffed field offices in Kurgan-Tiube, Shaartuz, and Dusti, and a locally-staffed office in Garm, and made periodic visits to the Leninabad region, but as of this writing had still not opened an office in the latter area.

Republic of Uzbekistan

Uzbekistan continued to accuse Tajikistan of harboring Islamic militants responsible for attacks in Uzbekistan, and was blamed by the Tajik government and the UTO for bombing Tajik territory when providing military support to the Kyrgyz offensive against Uzbek militants in the south of Kyrgyzstan. The two countries signed an agreement to cooperate in fighting terrorism, political and religious extremism, and drug-trafficking, and Uzbekistan upgraded its Dushanbe diplomatic mission to an embassy. Border crossings for Tajik citizens, and passenger and automobile transportation, continued in general to be arduous and erratic.

Russian Federation

In 1999, President Rakhmonov called Russia "the only reliable partner and guarantor of stability and security in Tajikistan," paving the way for Russia to open a permanent military base. Russia and Tajikistan signed cooperation agreements on defense, arms, and narcotics smuggling, as well as to counter Islamic fundamentalism.

United States

United States embassy international staff continued to be based in Almaty for security reasons. The absence of a full diplomatic staff weakened the U.S. political profile in the country, as well as its ability regularly and effectively to raise human rights violations with the government as it had in previous years. The U.S. nonetheless continued to be one of the major funders of international NGOs working in the country, and the State Department's Country Reports on Human Rights Practices for 1998 provided an unbiased review of the immense scope of abuse in the country.

